

CHAPTER 3

An Act to provide for the appointment of additional judges of the High Court and Court of Appeal; and to make further provision with respect to the pensions of certain judicial officers. [20th December, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Numbers of Supreme Court Judges

1.—(1) The maximum number of puisne judges of the High Court shall be increased from forty-two to forty-eight. Additional judges of High Court and

(2) The number of ordinary judges of the Court of Appeal shall, instead of being fixed at eight, be not less than eight nor more than eleven. Court of Appeal.

(3) This section shall be construed as one with the Supreme Court of Judicature (Consolidation) Act, 1925.

Superannuation of Judicial Officers

2. The pension payable under the Police Magistrates (Superannuation) Acts, 1915 and 1929, or under section thirty-three of the Justices of the Peace Act, 1949, to a person who retires from office as a stipendiary magistrate shall be calculated on the salary he was receiving in the office in question immediately before his retirement in every case, instead of being so calculated only where he has been in receipt of that salary for three years or more. Pensions of stipendiary magistrates.

3.—(1) Section one hundred and twenty-eight of the Supreme Court of Judicature (Consolidation) Act, 1925 (which regulates the pensions of officers of the Supreme Court described in Part I of the Third Schedule to that Act, and of certain other judicial officers) shall have effect as if the scale of allowances set out in the First Schedule to this Act were substituted for the scale contained in Part III of the said Third Schedule; and any reference in that Act to the said Part III shall be construed accordingly. Pensions of certain officers of Supreme Court etc.

(2) The said section one hundred and twenty-eight shall cease to have effect in relation to the offices of Permanent Secretary to the Lord Chancellor and Official Solicitor to the Supreme Court.

(3) Nothing in this section shall be construed as affecting the superannuation allowances payable by virtue of section one of the Supreme Court Officers (Pensions) Act, 1954 (which relates to the pensions of official referees).

Pension of
Judge
Advocate
General.

4.—(1) In section thirty-four of the Courts-Martial (Appeals) Act, 1951 (which regulates the pension of the Judge Advocate General) the following subsection shall be substituted for subsection (1):—

“(1) Subject to the provisions of this section, there may be paid to any person who has held the office of Judge Advocate General for a period of not less than five years, on his ceasing to hold that office, a pension at the following rate:—

(a) if he has held that office for a period of not less than fifteen years, one half of the salary payable to him immediately before he ceased to hold it;

(b) if he has held that office for a period of less than fifteen years, one quarter of that salary plus one fortieth of that salary for each completed year of service in that office exceeding five.”

(2) Sections two to eight of the Administration of Justice (Pensions) Act, 1950 (which provide for the payment of lump sums on retirement or death and of widows' and children's pensions in the case of persons eligible for pensions for service in any of the capacities listed in the First Schedule to that Act) shall have effect, in relation to any person who has duly elected that subsection (1) of the said section thirty-four shall apply to him, as if the capacity of Judge Advocate General were listed in the First Schedule to that Act; and for the purposes of that Act the expression “relevant service”, in relation to that capacity, shall mean service as Judge Advocate General.

Supplemental

Financial
provisions.

5. There shall be paid out of the Consolidated Fund, or out of moneys provided by Parliament, any increase attributable to the provisions of this Act in the sums which, under any other enactment, are payable out of that Fund, or out of moneys so provided, as the case may be.

Consequential
amendments,
repeals and
saving.

6.—(1) The enactments described in Part I of the Second Schedule to this Act shall have effect subject to the amendments set out in relation thereto in the second column of that Part (being amendments consequential on the foregoing provisions of this Act); and the enactments described in Part II of that Schedule are hereby repealed to the extent specified in the third column of that Part.

(2) Nothing in this Act affects any pension or other benefit payable to or in respect of a person who retired or died before the commencement of this Act.

Short title.

7. This Act may be cited as the Administration of Justice (Judges and Pensions) Act, 1960.

SCHEDULES

FIRST SCHEDULE

Section 3.

SCALE OF SUPERANNUATION ALLOWANCES UNDER SUPREME COURT OF
JUDICATURE (CONSOLIDATION) ACT, 1925

SCHEDULE 3, PART III

1. An annual allowance not exceeding fifteen-eightieths of the last annual salary may be granted after the completion of a period of service of five years.

2. Where the period of service completed exceeds five years, there may be granted an annual allowance not exceeding fifteen-eightieths of the last annual salary, with an addition of—

(a) one-eightieth of that salary for each completed year's service in excess of five up to ten; and

(b) (subject to paragraph 3 below) one-fortieth of that salary for each completed year's service in excess of ten.

3. The maximum allowance shall be one-half of the last annual salary.

4. In relation to any person in whose case an election is in force under subsection (1) of section eleven of the Administration of Justice (Pensions) Act, 1950, the foregoing provisions shall have effect as if for any reference to the last annual salary there were substituted a reference to the amount of that salary increased by one third.

SECOND SCHEDULE

Section 6.

CONSEQUENTIAL AMENDMENTS AND REPEALS

PART I

AMENDMENTS

<i>Enactment</i>	<i>Amendment</i>
The Supreme Court of Judicature (Consolidation) Act, 1925. 15 & 16 Geo. 5. c. 49.	In section two, in subsection (1), for the words from "not less than" to the end of the subsection there shall be substituted the words "not less than twenty-five nor more than forty-eight puisne judges of that Court".
	In section six, in subsection (1), for the words "eight ordinary judges" there shall be substituted the words "not less than eight nor more than eleven ordinary judges".
The Supreme Court of Judicature (Amendment) Act, 1944. 7 & 8 Geo. 6. c. 9.	In section one, in subsection (2), for the words "less than forty-two" there shall be substituted the words "less than forty-eight".

2ND SCH.

PART II

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
5 & 6 Geo. 5. c. 74.	The Police Magistrates (Superannuation) Act, 1915.	In section one, in subsection (2), the words from "unless" to the end of the subsection.
1 & 2 Geo. 6. c. 67.	The Supreme Court of Judicature (Amendment) Act, 1938.	Section one.
7 & 8 Geo. 6. c. 9.	The Supreme Court of Judicature (Amendment) Act, 1944.	In section one, subsection (1). In the Schedule, the amendment of section two of the Supreme Court of Judicature (Consolidation) Act, 1925.
12, 13 & 14 Geo. 6. c. 62.	The Patents and Designs Act, 1949.	Section forty-nine.
12, 13 & 14 Geo. 6. c. 101.	The Justices of the Peace Act, 1949.	In section thirty-three, in subsection (5), the words from "except" to the end of the subsection.
14 Geo. 6. c. 4.	The High Court and County Court Judges Act, 1950.	The whole Act.
14 & 15 Geo. 6. c. 11.	The Administration of Justice (Pensions) Act, 1950.	In the Second Schedule, the amendment of Part III of the Third Schedule to the Supreme Court of Judicature (Consolidation) Act, 1925.
4 & 5 Eliz. 2. c. 68.	The Restrictive Trade Practices Act, 1956.	In section thirty-two, subsection (1).

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Supreme Court of Judicature (Consolidation) Act, 1925.	15 & 16 Geo. 5. c. 49.
Justices of the Peace Act, 1949	12, 13 & 14 Geo. 6. c. 101.
Administration of Justice (Pensions) Act, 1950	14 & 15 Geo. 6. c. 11.
Courts-Martial (Appeals) Act, 1951	14 & 15 Geo. 6. c. 46.
Supreme Court Officers (Pensions) Act, 1954	2 & 3 Eliz. 2. c. 38.